REGULATION NO. (3) OF 2026

Government Procurement and Contracts Regulation

Edition | Training Edition

Issued by	Government Procurement Office
Date of issue	15 January 2026
Applies to	All Government Entities, including transport authorities
Status	In force

Fictional regulation - for IBM Bob training use only. Not a legal text.

CHAPTER 1 - GENERAL PROVISIONS

Article 1 - Title

This Regulation may be cited as the Government Procurement and Contracts Regulation (Training Edition), Regulation No. 3 of 2026.

Article 2 - Definitions

In this Regulation:

- **Government Entity**: any ministry, authority, department or public body of the Government.
- **Tender Documents**: all documents issued by a Government Entity to invite bids, including any language versions.
- **Bidder**: any person or company that submits a bid.
- **Contract Value**: the total value of the contract awarded, excluding VAT.
- **Closing Date**: the last date and time for the submission of bids.
- **Final Acceptance**: the Government Entity's written acceptance of the completed works.

Article 3 - Scope

This Regulation applies to the procurement of goods, works and services by Government Entities where the estimated value exceeds AED 500,000.

Article 4 - Principles

Procurement shall be conducted with transparency, equal treatment of bidders, fair competition and value for money.

CHAPTER 2 - TENDER DOCUMENTS

Article 5 - Mandatory Contents of Tender Documents

Tender Documents shall include, as a minimum:

a. the tender reference number and title;

b. the issuing Government Entity and contact details;

c. the scope of work;

d. the technical specifications;

e. bidder eligibility and qualification requirements;

f. submission instructions, including the Closing Date and the clarification deadline;

g. the bid validity period;

h. bid security requirements;

i. the evaluation criteria and their weightings;

j. commercial and payment terms;

k. performance guarantee requirements;

l. delay penalties;

m. the contract duration and delivery schedule;

n. the governing law and dispute resolution;

o. a language clause; and

p. the approval of the Tender Documents in accordance with Article 6.

Tender Documents that do not include all of the above shall not be published.

Article 6 - Approval Before Publication

Tender Documents shall be approved and signed by the authorised official of the Government Entity before publication. The approval date and approval reference shall be recorded in the Tender Documents.

Article 7 - Language of Tender Documents

1. Tender Documents shall be issued in Arabic and may also be issued in English.
2. Where Tender Documents are issued in both languages, the two versions shall be identical in substance, including all values, percentages, dates, periods and obligations.
3. Every clause in one language version shall also appear in the other.
4. In case of any discrepancy, the Arabic text prevails. However, a Government Entity shall correct every discrepancy identified before publication.

CHAPTER 3 - PUBLICATION AND SUBMISSION

Article 8 - Publication Period

The period between the publication of a tender and its Closing Date shall be not less than:

- **21 calendar days** for public tenders;
- 14 calendar days for limited tenders; and
- 7 calendar days for direct procurement, where permitted.

Article 9 - Electronic Submission

Bids shall be submitted through the official e-procurement portal. Technical and financial proposals shall be submitted separately.

Article 10 - Clarifications

The clarification deadline shall be at least 7 calendar days before the Closing Date. Answers shall be shared with all bidders.

CHAPTER 4 - BID VALIDITY AND GUARANTEES

Article 11 - Bid Validity

The bid validity period shall be **not less than 90 days** from the Closing Date.

Article 12 - Bid Security

1. Bid security shall be not less than 1% and not more than 5% of the bid value.
2. It shall be an unconditional bank guarantee issued by a bank licensed in the UAE.
3. It shall remain valid for at least 30 days beyond the bid validity period.

Article 13 - Performance Guarantee

The successful bidder shall provide a performance guarantee of **10% of the Contract Value** within 14 days of the award notice. The guarantee shall remain valid until at least 90 days after Final Acceptance.

Article 14 - Advance Payment

1. An advance payment shall **not exceed 20% of the Contract Value**.
2. An advance payment shall be released only against an unconditional advance payment guarantee of equal value.

CHAPTER 5 - EVALUATION

Article 15 - Evaluation Criteria

Tender Documents shall state all evaluation criteria, their weightings and any minimum technical score. Criteria that are not disclosed in the Tender Documents shall not be applied.

Article 16 - Two-Stage Evaluation

Technical proposals shall be evaluated first. Financial proposals shall be opened only for bidders who meet the minimum technical score.

CHAPTER 6 - CONTRACT EXECUTION

Article 17 - Payment

Payments shall be made within 30 days of receiving an approved invoice.

Article 18 - Delay Penalties

1. The delay penalty shall **not exceed 0.1% of the Contract Value per day** of delay.
2. The total delay penalties shall **not exceed 10% of the Contract Value**.

Article 19 - Contract Duration

Tender Documents shall state the contract duration and the key delivery milestones.

CHAPTER 7 - DISPUTES AND FINAL PROVISIONS

Article 20 - Governing Law and Disputes

Government contracts are governed by the laws of the UAE. Disputes not settled amicably within 30 days shall be referred to the competent courts.

Article 21 - Final Provisions

This Regulation takes effect from its date of issue.

Issued at the Government Procurement Office on 15 January 2026.

Director General

Government Procurement Office

- End of Regulation -